

House File 639

S-3152

1 Amend House File 639, as amended, passed, and reprinted by
2 the House, as follows:

3 1. By striking everything after the enacting clause and
4 inserting:

5 <Section 1. Section 476.33, Code 2025, is amended by adding
6 the following new subsection:

7 NEW SUBSECTION. 5. For hearings initiated under this
8 chapter, a majority of the members of the commission shall be
9 present during any live testimony. If at any point during live
10 testimony at a hearing less than a majority of the members
11 are available for any reason, the meeting shall pause until a
12 majority of the members of the commission are available.

13 Sec. 2. Section 476A.4, Code 2025, is amended by adding the
14 following new subsections:

15 NEW SUBSECTION. 6. All hearings initiated under this
16 chapter shall follow the attendance rules governing commission
17 members as provided in section 476.33, subsection 5.

18 NEW SUBSECTION. 7. After a hearing, if notice by
19 publication was properly made, an operator of an electric power
20 generation and transmission facility and a property owner may
21 enter a voluntary agreement for an interest in the property
22 without regard to whether the property owner received notice
23 by mail.

24 Sec. 3. NEW SECTION. **476A.4A Objections.**

25 1. If an applicant is exercising the power of eminent domain
26 pursuant to this chapter, a person, including a governmental
27 entity, whose rights or interests may be affected by the
28 proposed facility may file written objections.

29 2. All objections shall be on file with the commission
30 not less than five days before the date of hearing on the
31 application. However, the commission may permit the filing
32 of the objections later than five days before the hearing, in
33 which event the applicant must be granted a reasonable time to
34 respond to the objections.

35 3. If a facility is relocated due to an objection filed

1 pursuant to this section, the utilities commission shall not
2 require an applicant to resubmit an application for a permit
3 pursuant to section 479A.3.

4 4. Notwithstanding any other provisions in this section,
5 an objection filed by a government entity that is a regulatory
6 agency or city or county zoning authority subject to the
7 requirements of section 476A.5 shall only address items not
8 within the scope of section 476A.5.

9 Sec. 4. Section 476A.6, unnumbered paragraph 1, Code 2025,
10 is amended to read as follows:

11 The commission shall render a decision on the application in
12 an expeditious manner. The commission shall render a decision
13 on an application requesting the power of eminent domain no
14 later than one year after the request for eminent domain is
15 received by the commission. A certificate shall be issued to
16 the applicant if the commission finds all of the following:

17 Sec. 5. **NEW SECTION. 476A.16 Access to lines — damages.**

18 1. Individuals or corporations operating transmission
19 lines for the facility shall have reasonable access to
20 the transmission lines for the purpose of constructing,
21 reconstructing, enlarging, repairing, or locating the poles,
22 wires, or construction and other devices used in or upon any
23 line, but shall pay to the owner of the lands and of crops on
24 the lands all damages to the lands or crops caused by entering,
25 using, and occupying the lands for those purposes. This
26 section shall not prevent the execution of an agreement between
27 the person, company, or corporation owning or operating the
28 lines and the owner of the land or crops regarding the use of
29 the land.

30 2. A claim for crop yield loss damages pursuant to this
31 section shall not be precluded from renegotiation under section
32 6B.52 on the grounds that the damages were apparent at the time
33 of settlement unless the settlement expressly releases the
34 person, company, or corporation owning or operating the lines
35 from claims for damages to the productivity of the soil. A

1 landowner that seeks damages under this section not subject to
2 a release shall notify the person, company, or corporation in
3 writing fourteen days prior to harvest in each year to assess
4 crop deficiency.

5 Sec. 6. NEW SECTION. **476A.17 Drainage tile — liability.**

6 For an applicant exercising the power of eminent domain
7 pursuant to this chapter, the operator of the electric power
8 generation and transmission facility shall be liable for
9 repairs of drainage tile installed prior to the installation of
10 the facility, when the installation, construction, operation,
11 maintenance, or repair of the facility is the proximate cause
12 of the damage to the drainage tile. The operator's liability
13 pursuant to this section shall continue for the life of the
14 electric power generation and transmission facility and shall
15 include all of the following:

16 1. The full replacement costs of the drainage tile,
17 including, without limitation, material, labor, and equipment.

18 2. The reclamation and restoration of topsoil as part of any
19 drainage tile repair.

20 Sec. 7. NEW SECTION. **476A.18 Land restoration standards.**

21 1. The commission shall adopt rules pursuant to chapter
22 17A regarding the restoration of agricultural lands following
23 construction of a facility subject to this chapter. Rules
24 adopted under this section shall implement the following
25 requirements, which shall not apply within the corporate limits
26 of a city, to any land owned by the facility owner, or to any
27 construction, activity, or facility other than a facility as
28 defined in this chapter:

29 a. A facility owner shall repair a damaged underground
30 drain tile as soon as practicable during construction of the
31 facility. Permanent repairs to the damaged underground drain
32 tile shall be completed as soon as practicable after the
33 initial construction of the facility is complete. The repairs
34 made to the damaged drain tile shall be of at least equal
35 quality, size, and flow capacity of the original drain tile.

1 *b.* Following the construction of the facility, the facility
2 owner shall remove from any easement area all rock larger than
3 three inches in average diameter not native to the soil of the
4 excavated land. The rock removed from the excavated land that
5 cannot be used to backfill shall be disposed of at a location
6 and in a manner agreed upon by the facility owner and the
7 landowner.

8 *c.* Upon completion of construction activities on a property,
9 the facility owner shall deep till agricultural land, including
10 right-of-way access points or roads traversed by heavy
11 construction equipment, to alleviate soil compaction. The land
12 shall be tilled at least eighteen inches deep in land used for
13 crop production and twelve inches deep in other lands unless
14 otherwise agreed to by the landowner.

15 *d.* Upon completion of the facility, the facility owner shall
16 restore the soil conservation practices and structures damaged
17 during construction of the facility to the elevation and grade
18 existing on the land prior to the construction. The soil used
19 to repair embankments intended to retain water shall be well
20 compacted. Any vegetation disturbed during construction shall
21 be reestablished, including cover crops when appropriate.

22 *e.* Following compaction of the land, agricultural land that
23 is not in row crop or small grain production at the time of
24 construction, including hay ground and land in conservation or
25 set-aside programs, shall be reseeded and a cover crop shall
26 be utilized when appropriate. Seeding for cover crops may be
27 delayed if the construction of the facility is completed too
28 late in the year for a cover crop to become established and is
29 not required if the land will be tilled in the following year.
30 The landowner may request ground cover to prevent soil erosion
31 in areas where construction on the facility is completed if the
32 season is not suitable for seeding a cover crop.

33 *f.* Unless agreed upon by the facility owner and the
34 landowner, the facility owner shall remove field entrances
35 or temporary roads built for the purpose of constructing the

1 facility upon the completion of construction and restore the
2 area to its previous use.

3 *g.* A facility owner shall use good utility practices for
4 constructing the facility in wet conditions, such as electing
5 to use matting or padding when utilizing heavy equipment. A
6 facility owner shall grade and till any rutted land to restore,
7 to the extent practicable, the original condition of the land
8 prior to the construction of the facility. If agreed upon by
9 the facility owner and the landowner, the landowner may repair
10 any damage caused by construction activities in wet conditions
11 and the facility owner shall reimburse the landowner for the
12 reasonable cost incurred to repair the damage. If a facility
13 owner utilizes heavy equipment in wetlands or mudflats, mats or
14 other measures shall be utilized to minimize soil disturbance.

15 *h.* The facility owner shall designate a point of contact for
16 inquiries or claims from an affected person. The designation
17 shall include a name, a telephone number, an email address, and
18 an address.

19 2. *a.* If a facility owner and a landowner dispute a
20 potential violation of the restoration standards provided in
21 subsection 1, the commission may appoint a qualified individual
22 to inspect the property for compliance. If the qualified
23 individual determines that there has been a violation of the
24 applicable restoration standards, the commission shall provide
25 oral notice, followed by written notice, to the facility owner
26 and the contractor operating for the facility owner and order
27 corrective action to comply with the restoration standards.
28 The facility owner shall be responsible for the costs of the
29 corrective action.

30 *b.* If the facility owner or the contractor for the facility
31 owner does not comply with a valid order for corrective
32 action issued by the commission, the commission may issue an
33 order requiring corrective action to be taken and may impose
34 civil penalties under section 478.29, which shall apply to a
35 violation of this section in lieu of section 476A.14.

1 *c.* The commission shall instruct the inspector appointed by
2 the commission regarding the content of the statutes and rules
3 and the responsibility of the inspector to require restoration
4 conforming with the standards established in subsection 1.

5 3. *a.* An applicant for a certificate shall file with the
6 application a written land restoration plan that documents how
7 the requirements and rules of subsection 1 will be met. The
8 applicant shall provide a copy of the plan to all landowners
9 of property that will be disturbed by the construction of the
10 facility.

11 *b.* Nothing in this section shall preclude the application
12 of provisions for protecting or restoring property that are
13 different than those prescribed in subsection 1, in rules
14 adopted under subsection 1, or in the land restoration plan,
15 if the alternative provisions are contained in agreements
16 independently executed by the facility owner and the landowner.
17 Independent agreements for land restoration between the
18 facility owner and the landowner shall be in writing and made
19 available to the commission upon request.

20 *c.* The commission may by waiver allow variations from the
21 requirements of subsection 1 if the facility owner requesting a
22 waiver satisfies the standards set forth in section 17A.9A and
23 if the alternative methods proposed by the facility owner would
24 restore the land to a condition as good as or better than as
25 provided for in subsection 1.

26 *d.* The commission may waive preparation of a separate
27 land restoration plan if the facility owner enters into an
28 agricultural impact mitigation plan or similar agreement
29 with the appropriate agencies of this state that satisfies
30 the requirements of subsection 1. If a mitigation plan or
31 agreement is used to fully or partially meet the requirements
32 of a land restoration plan, the statement or agreement shall
33 be filed with the commission and shall be considered to be,
34 or to be part of, the land restoration plan for purposes of
35 subsection 1.

1 4. Nothing in this section shall limit, expand, or otherwise
2 modify the rights of access and obligations for damages set
3 forth in section 476A.16.

4 5. The requirements of this section shall apply only to
5 facility construction projects commenced on or after June 1,
6 2025.

7 Sec. 8. NEW SECTION. **476A.19 Particular damage claims.**

8 1. When the facility owner's interest in the landowner's
9 property was acquired by the exercise of eminent domain
10 pursuant to this chapter, compensable losses may include but
11 are not limited to any of the following:

12 a. Loss or reduced yield of crops or forage on the facility
13 right-of-way, whether caused directly by construction or from
14 disturbance of usual farm operations.

15 b. Loss or reduced yield of crops from land near the
16 facility right-of-way resulting from lack of timely access
17 to the land or other disturbance of usual farm operations,
18 including interference with irrigation or drainage.

19 c. Costs associated with the application of fertilizer,
20 lime, or organic material by the landowner to restore land
21 disturbed by construction to full productivity.

22 d. Loss of or damage to trees of commercial value that
23 occurs at the time of construction or restoration, or at the
24 time of any subsequent work by the individual, company, or
25 corporation operating the facility.

26 e. The cost of or losses in moving or relocating livestock,
27 and the loss of gain by or the death or injury of livestock
28 caused by the interruption or relocation of normal feeding.

29 f. Erosion and soil compaction on lands attributable to
30 facility construction.

31 g. Damage to farm equipment caused by striking debris or
32 other material reasonably associated with facility construction
33 while engaged in normal farming operations as defined in
34 section 480.1.

35 h. Damage to soil or water conservation structures caused

1 by construction, restoration, or subsequent work by the
2 individual, company, or corporation operating the facility
3 including but not limited to terraces, grassed waterways, water
4 and sediment control basins, ponds, saturated buffers, and
5 biofilters.

6 *i.* Damage to irrigation or drainage systems caused
7 by construction, restoration, or subsequent work by the
8 individual, company, or corporation operating the facility.

9 2. A claim for damages pursuant to this section shall not be
10 precluded from renegotiation under section 6B.52 on the grounds
11 that the damages were apparent at the time of settlement unless
12 the settlement expressly releases the individual, company,
13 or corporation operating the facility from the claim. The
14 landowner shall notify the individual, company, or corporation
15 in writing fourteen days prior to harvest in each year to
16 assess crop deficiency.

17 3. A landowner that incurred damage under this section
18 is eligible for compensation for damages. A landowner may
19 file a claim for damages against an individual, company, or
20 corporation operating the facility in small claims or district
21 court for a violation of this section.

22 Sec. 9. Section 478.2, subsection 2, paragraph a, Code 2025,
23 is amended to read as follows:

24 *a.* A member of the commission, the counsel of the
25 commission, or a presiding officer designated by the commission
26 shall serve as the presiding officer at each meeting, shall
27 present an agenda for such meeting, which shall include
28 a summary of the legal rights of the affected landowners,
29 and shall distribute and review the statement of individual
30 rights required under [section 6B.2A, subsection 1](#). At least
31 one member of the commission shall attend each informational
32 meeting. If at any point during the meeting no member of the
33 commission is available for any reason, the meeting shall pause
34 until at least one member of the commission returns. A formal
35 record of the meeting shall not be required.

1 Sec. 10. Section 478.2, subsection 4, Code 2025, is amended
2 to read as follows:

3 4. a. A person seeking rights under **this chapter** shall
4 not negotiate or purchase any easements or other interests in
5 land in any county known to be affected by the proposed project
6 prior to the informational meeting. After such meeting, if
7 notice by publication was properly made, a person seeking
8 rights under this chapter and a landowner may enter a voluntary
9 agreement for an interest in land without regard to whether
10 the landowner received notice by mail. Prior to entering a
11 voluntary agreement with a landowner who did not receive notice
12 of the informational meeting by mail, the person seeking rights
13 under this chapter shall provide such landowner copies of the
14 informational meeting materials presented by the commission,
15 the consumer advocate, and the person seeking rights under
16 this chapter. Nothing in this paragraph shall prohibit a
17 person seeking rights under this chapter from holding a meeting
18 prior to the informational meeting required by this section to
19 provide general information regarding a project to a community
20 that does not include negotiating specific terms with specific
21 landowners.

22 b. A person seeking rights under this chapter may contact
23 landowners within five miles of the project's proposed route
24 for the purpose of seeking voluntary easements under the same
25 conditions as provided in paragraph "a".

26 Sec. 11. Section 478.5, Code 2025, is amended to read as
27 follows:

28 **478.5 Notice — objections filed.**

29 1. Upon the filing of such petition, the utilities
30 commission shall cause a notice, addressed to the citizens
31 of each county through which the proposed line or lines
32 will extend, to be published in a newspaper located in each
33 such county for two consecutive weeks. Said notice shall
34 contain a general statement of the contents and purpose of the
35 petition, a general description of the lands and highways to

1 be traversed by the proposed line or lines, and shall state
2 that any objections thereto must be filed in writing with the
3 commission not later than twenty days after the date of last
4 publication of the notice. Any person, company, city, or
5 corporation whose rights may be affected, shall have the right
6 to file written objections to the proposed improvement or to
7 the granting of such franchise; such objections shall be filed
8 with the commission not later than twenty days after the date
9 of last publication and shall state the grounds therefor. The
10 commission may allow objections to be filed later in which
11 event the applicant must be given reasonable time to ~~meet~~
12 respond to such late objections.

13 2. If a route is readjusted due to an objection filed
14 pursuant to this section, the utilities commission shall not
15 require the individual, company, or corporation asking for the
16 franchise to resubmit a petition for a franchise pursuant to
17 section 478.2.

18 Sec. 12. Section 478.6, Code 2025, is amended by adding the
19 following new subsection:

20 NEW SUBSECTION. 4. The commission shall render a decision
21 on a petition requesting the power of eminent domain no later
22 than one year after the request for eminent domain is received
23 by the commission.

24 Sec. 13. Section 478.17, Code 2025, is amended to read as
25 follows:

26 **478.17 Access to lines — damages.**

27 1. Individuals or corporations operating transmission lines
28 shall have reasonable access to the transmission lines for the
29 purpose of constructing, reconstructing, enlarging, repairing,
30 or locating the poles, wires, or construction and other devices
31 used in or upon any line, but shall pay to the owner of the
32 lands and of crops on the lands all damages to the lands or
33 crops caused by entering, using, and occupying the lands for
34 those purposes. **This section** shall not prevent the execution
35 of an agreement between the person, ~~or~~ company, or corporation

1 owning or operating the lines and the owner of the land or
2 crops regarding the use of the land.

3 2. A claim for damages pursuant to this section due to crop
4 yield loss shall not be precluded from renegotiation under
5 section 6B.52 on the grounds that the damages were apparent at
6 the time of settlement unless the settlement expressly releases
7 the person, company, or corporation owning or operating the
8 lines from claims for damages to the productivity of the soil.
9 A landowner that seeks damages under this section not subject
10 to a release shall notify the person, company, or corporation
11 in writing fourteen days prior to harvest in each year to
12 assess crop deficiency.

13 Sec. 14. **NEW SECTION.** **478.17A Drainage tile — liability.**

14 For an applicant exercising the power of eminent domain
15 pursuant to this chapter, an electric transmission owner
16 as defined in section 478.16 shall be liable for repairs
17 of drainage tile installed prior to the installation of
18 the electric transmission line, when the installation,
19 construction, operation, maintenance, or repair of the electric
20 transmission line is the proximate cause of the damage to
21 the drainage tile. The operator's liability pursuant to
22 this section shall continue for the life of the electric
23 transmission line and shall include all of the following:

24 1. The full replacement costs of the drainage tile,
25 including, without limitation, material, labor, and equipment.

26 2. The reclamation and restoration of topsoil as part of any
27 drainage tile repair.

28 Sec. 15. Section 478.29, subsection 1, Code 2025, is amended
29 to read as follows:

30 1. A person who violates a provision of this chapter or
31 section 476A.18 is subject to a civil penalty, which may
32 be levied by the commission, of not more than one hundred
33 dollars per violation or one thousand dollars per day of a
34 continuing violation, whichever is greater. Civil penalties
35 collected pursuant to this section shall be forwarded by the

1 chief operating officer of the commission to the treasurer
2 of state to be credited to the general fund of the state and
3 appropriated to the department of health and human services for
4 purposes of the low income home energy assistance program and
5 the weatherization assistance program.

6 Sec. 16. NEW SECTION. **478.34 Land restoration standards.**

7 1. The commission shall adopt rules pursuant to chapter
8 17A regarding the restoration of agricultural lands following
9 construction of an electric transmission line subject to
10 this chapter that is capable of operating at two hundred
11 kilovolts or greater. Rules adopted under this section shall
12 implement the following requirements, which shall not apply
13 within the corporate limits of a city, to property excluded
14 from a franchise under section 478.1, subsection 2, or to any
15 construction, activity, or facility not subject to a franchise
16 under this chapter:

17 a. An electric transmission owner shall repair a damaged
18 underground drain tile as soon as practicable during
19 construction of the electric transmission line. Permanent
20 repairs to the damaged underground drain tile shall be
21 completed as soon as practicable after the initial construction
22 of the electric transmission line is complete. The repairs
23 made to the damaged drain tile shall be of at least equal
24 quality, size, and flow capacity of the original drain tile.

25 b. Following the construction of an electric transmission
26 line, the electric transmission owner shall remove from the
27 easement area all rock larger than three inches in average
28 diameter not native to the soil of the excavated land. The
29 rock removed from the excavated land that cannot be used to
30 backfill shall be disposed of at a location and in a manner
31 agreed upon by the electric transmission owner and the
32 landowner.

33 c. Upon completion of construction activities on a property,
34 the electric transmission owner shall deep till agricultural
35 land, including right-of-way access points or roads traversed

1 by heavy construction equipment, to alleviate soil compaction.
2 The land shall be tilled at least eighteen inches deep in land
3 used for crop production and twelve inches deep in other lands
4 unless otherwise agreed to by the landowner.

5 *d.* Upon completion of the electric transmission line, the
6 electric transmission owner shall restore the soil conservation
7 practices and structures damaged during construction of the
8 electric transmission line to the elevation and grade existing
9 on the land prior to the construction. The soil used to
10 repair embankments intended to retain water shall be well
11 compacted. Any vegetation disturbed during construction shall
12 be reestablished, including cover crops when appropriate.

13 *e.* Following compaction of the land, agricultural land that
14 is not in row crop or small grain production at the time of
15 construction, including hay ground and land in conservation or
16 set-aside programs, shall be reseeded and a cover crop shall
17 be utilized when appropriate. Seeding for cover crops may be
18 delayed if the construction of the electric transmission line
19 is completed too late in the year for a cover crop to become
20 established and is not required if the land will be tilled in
21 the following year. The landowner may request ground cover
22 to prevent soil erosion in areas where construction on the
23 electric transmission line is completed if the season is not
24 suitable for seeding a cover crop.

25 *f.* Unless agreed upon by the electric transmission owner
26 and the landowner, the electric transmission owner shall remove
27 field entrances or temporary roads built for the purpose of
28 constructing the electric transmission line upon the completion
29 of construction and restore the area to its previous use.

30 *g.* An electric transmission owner shall use good utility
31 practices for constructing the electric transmission line in
32 wet conditions, such as electing to use matting or padding when
33 utilizing heavy equipment. An electric transmission owner
34 shall grade and till any rutted land to restore, to the extent
35 practicable, the original condition of the land prior to the

1 construction of the electric transmission line. If agreed
2 upon by the electric transmission owner and the landowner,
3 the landowner may repair any damage caused by construction
4 activities in wet conditions and the electric transmission
5 owner shall reimburse the landowner for the reasonable cost
6 incurred to repair the damage. If an electric transmission
7 owner utilizes heavy equipment in wetlands or mudflats, mats or
8 other measures shall be utilized to minimize soil disturbance.

9 *h.* The electric transmission owner shall designate a point
10 of contact for inquiries or claims from an affected person.
11 The designation shall include a name, a telephone number, an
12 email address, and an address.

13 2. *a.* If an electric transmission owner and a landowner
14 dispute a potential violation of the restoration standards
15 provided in subsection 1, the commission may appoint a
16 qualified individual to inspect the property for compliance.
17 If the qualified individual determines that there has been
18 a violation of the applicable restoration standards, the
19 commission shall provide oral notice, followed by written
20 notice, to the electric transmission owner and the contractor
21 operating for the electric transmission owner and order
22 corrective action to comply with the restoration standards.
23 The electric transmission owner shall be responsible for the
24 costs of the corrective action.

25 *b.* If the electric transmission owner or the contractor
26 for the electric transmission owner does not comply with a
27 valid order for corrective action issued by the commission, the
28 commission may issue an order requiring corrective action to be
29 taken and may impose civil penalties under section 478.29.

30 *c.* The commission shall instruct the inspector appointed by
31 the commission regarding the content of the statutes and rules
32 and the responsibility of the inspector to require restoration
33 conforming with the standards established in subsection 1.

34 3. *a.* A petitioner for a franchise for an electric
35 transmission line shall file with the petition a written land

1 restoration plan that documents how the requirements and rules
2 of subsection 1 will be met. The petitioner shall provide a
3 copy of the plan to all landowners of property that will be
4 disturbed by the construction of the electric transmission
5 line.

6 *b.* Nothing in this section shall preclude the application
7 of provisions for protecting or restoring property that are
8 different than those prescribed in subsection 1, in rules
9 adopted under subsection 1, or in the land restoration plan,
10 if the alternative provisions are contained in agreements
11 independently executed by the electric transmission owner and
12 the landowner. Independent agreements for land restoration
13 between the electric transmission owner and the landowner shall
14 be in writing and shall be made available to the commission
15 upon request.

16 *c.* The commission may by waiver allow variations from the
17 requirements of subsection 1 if the electric transmission
18 owner requesting a waiver satisfies the standards set forth
19 in section 17A.9A and if the alternative methods proposed
20 by the electric transmission owner would restore the land
21 to a condition as good as or better than as provided for in
22 subsection 1.

23 *d.* The commission may waive preparation of a separate land
24 restoration plan if the electric transmission owner enters into
25 an agricultural impact mitigation plan or similar agreement
26 with the appropriate agencies of this state that satisfies
27 the requirements of subsection 1. If a mitigation plan or
28 agreement is used to fully or partially meet the requirements
29 of a land restoration plan, the statement or agreement shall
30 be filed with the commission and shall be considered to be,
31 or to be part of, the land restoration plan for purposes of
32 subsection 1.

33 4. Nothing in this section shall limit, expand, or otherwise
34 modify the rights of access and obligations for damages set
35 forth in section 478.17.

1 5. The requirements of this section shall apply only to
2 electric transmission line construction projects commenced on
3 or after June 1, 2025.

4 Sec. 17. NEW SECTION. **478.35 Particular damage claims.**

5 1. When the electric transmission line owner's interest
6 in the landowner's property was acquired by the exercise of
7 eminent domain pursuant to this chapter, compensable losses may
8 include but are not limited to any of the following:

9 *a.* Loss or reduced yield of crops or forage on the electric
10 transmission line right-of-way, whether caused directly by
11 construction or from disturbance of usual farm operations.

12 *b.* Loss or reduced yield of crops from land near the
13 electric transmission line right-of-way resulting from lack of
14 timely access to the land or other disturbance of usual farm
15 operations, including interference with irrigation or drainage.

16 *c.* Costs associated with the application of fertilizer,
17 lime, or organic material by the landowner to restore land
18 disturbed by construction to full productivity.

19 *d.* Loss of or damage to trees of commercial value that
20 occurs at the time of construction or restoration, or at the
21 time of any subsequent work by the individual, company, or
22 corporation operating the transmission line.

23 *e.* The cost of or losses in moving or relocating livestock,
24 and the loss of gain by or the death or injury of livestock
25 caused by the interruption or relocation of normal feeding.

26 *f.* Erosion and soil compaction on lands attributable to
27 electric transmission line construction.

28 *g.* Damage to farm equipment caused by striking debris or
29 other material reasonably associated with electric transmission
30 line construction while engaged in normal farming operations as
31 defined in section 480.1.

32 *h.* Damage to soil or water conservation structures caused
33 by construction, restoration, or subsequent work by the
34 individual, company, or corporation operating the transmission
35 line including but not limited to terraces, grassed waterways,

1 water and sediment control basins, ponds, saturated buffers,
2 and biofilters.

3 *i.* Damage to irrigation or drainage systems caused
4 by construction, restoration, or subsequent work by the
5 individual, company, or corporation operating the transmission
6 line.

7 2. A claim for damages pursuant to this section shall not be
8 precluded from renegotiation under section 6B.52 on the grounds
9 that the damages were apparent at the time of settlement unless
10 the settlement expressly releases the individual, company,
11 or corporation operating the transmission line from the
12 claim. The landowner shall notify the individual, company, or
13 corporation in writing fourteen days prior to harvest in each
14 year to assess crop deficiency. The landowner may submit a
15 global positioning yield map to demonstrate such crop loss, but
16 the information contained in such map shall not be dispositive
17 as to the extent or causation of the damages, which may be
18 contested by the individual, company, or corporation operating
19 the transmission line.

20 3. A landowner that incurred damage under this section
21 is eligible for compensation for damages. A landowner may
22 file a claim for damages against an individual, company, or
23 corporation operating the transmission line in small claims
24 or district court for a violation of this section or pursue
25 remedies under section 478.36.

26 Sec. 18. NEW SECTION. 478.36 Hearing — commission member
27 attendance.

28 All hearings initiated under this chapter shall follow the
29 attendance rules governing commission members as provided in
30 section 476.33, subsection 5.

31 Sec. 19. Section 479.5, subsection 3, paragraph a, Code
32 2025, is amended to read as follows:

33 *a.* A pipeline company shall hold informational meetings
34 in each county in which real property or property rights will
35 be affected at least thirty days prior to filing the petition

1 for a new pipeline. A member of the commission or a person
2 designated by the commission shall serve as the presiding
3 officer at each meeting, shall present an agenda for the
4 meeting, which shall include a summary of the legal rights
5 of the affected landowners, and shall distribute and review
6 the statement of individual rights required under section
7 6B.2A. At least one member of the commission shall attend each
8 informational meeting. If at any point during the meeting
9 no member of the commission is available for any reason, the
10 meeting shall pause until at least one member of the commission
11 returns. A formal record of the meeting shall not be required.

12 Sec. 20. Section 479.5, subsection 5, Code 2025, is amended
13 to read as follows:

14 5. a. A ~~pipeline company~~ person seeking rights under this
15 chapter shall not negotiate or purchase any easements or other
16 interests in land in any county known to be affected by the
17 proposed project prior to the informational meeting. After
18 such meeting, if notice by publication was properly made, a
19 person seeking rights under this chapter and a landowner may
20 enter a voluntary agreement for an interest in land without
21 regard to whether the landowner received notice by mail. Prior
22 to entering a voluntary agreement with a landowner who did not
23 receive notice of the informational meeting by mail, the person
24 seeking rights under this chapter shall provide such landowner
25 copies of the informational meeting materials presented by
26 the commission, the consumer advocate, and the person seeking
27 rights under this chapter. Nothing in this paragraph shall
28 prohibit a person seeking rights under this chapter from
29 holding a meeting prior to the informational meeting required
30 by this section to provide general information regarding a
31 project to a community that does not include negotiating
32 specific terms with specific landowners.

33 b. A person seeking rights under this chapter may contact
34 landowners within five miles of the project's proposed route
35 for the purpose of seeking voluntary easements under the same

1 conditions as provided in paragraph "a".

2 Sec. 21. Section 479.9, Code 2025, is amended to read as
3 follows:

4 **479.9 Objections.**

5 1. Any person, corporation, company, or city whose rights
6 or interests may be affected by a proposed pipeline or lines
7 or gas storage facilities may file written objections to the
8 proposed pipeline or lines or gas storage facilities or to the
9 granting of a permit.

10 2. If a pipeline or line route is readjusted or a gas
11 storage facility is relocated due to an objection filed
12 pursuant to this section, the utilities commission shall not
13 require a pipeline company to resubmit an application for a
14 permit pursuant to section 479.5.

15 Sec. 22. Section 479.12, Code 2025, is amended to read as
16 follows:

17 **479.12 Final order — condition.**

18 The commission may grant a permit in whole or in part upon
19 terms, conditions, and restrictions as to safety requirements
20 and as to location and route as determined by it to be just
21 and proper. Before a permit is granted to a pipeline company,
22 the commission, after a public hearing as provided in this
23 chapter, shall determine whether the services proposed to be
24 rendered will promote the public convenience and necessity, and
25 an affirmative finding to that effect is a condition precedent
26 to the granting of a permit. The commission shall render a
27 decision on a petition requesting the power of eminent domain
28 no later than one year after the request for eminent domain is
29 received by the commission.

30 Sec. 23. Section 479.25, Code 2025, is amended to read as
31 follows:

32 **479.25 Damages.**

33 1. A pipeline company operating a pipeline or a gas
34 storage area shall have reasonable access to the pipeline or
35 gas storage area for the purpose of constructing, operating,

1 maintaining, or locating pipes, pumps, pressure apparatus or
2 other stations, wells, devices, or equipment used in or upon
3 the pipeline or gas storage area; shall pay the owner of the
4 land for the right of entry and the owner of crops for all
5 damages caused by entering, using, or occupying the land; and
6 shall pay to the owner all damages caused by the completion
7 of construction of the pipeline due to wash or erosion of the
8 soil at or along the location of the pipeline and due to the
9 settling of the soil along and above the pipeline. However,
10 this section shall not prevent the execution of an agreement
11 between the pipeline company and the owner of land or crops
12 with reference to the use of the land.

13 2. A claim for damages pursuant to this section due to crop
14 yield loss shall not be precluded from renegotiation under
15 section 6B.52 on the grounds that the damages were apparent
16 at the time of settlement unless the settlement expressly
17 releases the pipeline company from claims for damages to the
18 productivity of the soil. A landowner that seeks damages under
19 this section not subject to a release shall notify the pipeline
20 company in writing fourteen days prior to harvest in each year
21 to assess crop deficiency.

22 Sec. 24. Section 479.29, Code 2025, is amended by adding the
23 following new subsection:

24 NEW SUBSECTION. 1A. For a pipeline company exercising
25 the power of eminent domain pursuant to this chapter, the
26 pipeline company shall be liable for repairs of drain tile
27 installed prior to the installation of the pipeline, when the
28 installation, construction, operation, maintenance, or repair
29 of the pipeline is the proximate cause of the damage to the
30 drainage tile. The pipeline company's liability pursuant to
31 this section shall continue for the life of the pipeline and
32 shall include all of the following:

33 a. The full replacement costs of the drainage tile,
34 including, without limitation, material, labor, and equipment.

35 b. The reclamation and restoration of topsoil as part of any

1 drainage tile repair.

2 Sec. 25. Section 479.29, subsection 5, Code 2025, is amended
3 to read as follows:

4 5. If the pipeline company or its contractor does not
5 comply with the requirements of *this section*, with the
6 land restoration plan, or with an independent agreement on
7 land restoration or line location executed in accordance
8 with *subsection 10*, the county board of supervisors or a
9 landowner may petition the commission for an order requiring
10 corrective action to be taken. In addition, the county board
11 of supervisors or a landowner may file a complaint with the
12 commission seeking imposition of civil penalties pursuant to
13 section 479.31. A landowner may supply a copy of the complaint
14 to the county board of supervisors where the complaint
15 originated.

16 Sec. 26. Section 479.45, subsection 1, paragraphs b and f,
17 Code 2025, are amended to read as follows:

18 *b.* Loss or reduced yield of crops or yield from land near
19 the pipeline right-of-way resulting from lack of timely access
20 to the land or other disturbance of usual farm operations,
21 including interference with irrigation or drainage.

22 *f.* Erosion and soil compaction on lands attributable to
23 pipeline construction.

24 Sec. 27. Section 479.45, subsection 1, Code 2025, is amended
25 by adding the following new paragraphs:

26 NEW PARAGRAPH. *h.* Damage to soil or water conservation
27 structures caused by construction, restoration, or subsequent
28 work by the pipeline company including but not limited to
29 terraces, grassed waterways, water and sediment control basins,
30 ponds, saturated buffers, and biofilters.

31 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems
32 caused by construction, restoration, or subsequent work by the
33 pipeline company.

34 Sec. 28. Section 479.45, subsection 2, Code 2025, is amended
35 to read as follows:

1 2. A claim for ~~damage for future crop deficiency within~~
2 ~~the easement strip~~ damages incurred under this section shall
3 not be precluded from renegotiation under section 6B.52 on
4 the grounds that it was apparent at the time of settlement
5 unless the settlement expressly releases the pipeline company
6 from claims for damage to the productivity of the soil. ~~The A~~
7 landowner that seeks damages under this section not subject to
8 a release shall notify the pipeline company in writing fourteen
9 days prior to harvest in each year to assess crop deficiency.
10 The landowner may submit a global positioning yield map to
11 demonstrate such crop loss, but the information contained in
12 such map shall not be dispositive as to the extent or causation
13 of the damages, which may be contested by the pipeline company.

14 Sec. 29. Section 479.45, Code 2025, is amended by adding the
15 following new subsection:

16 NEW SUBSECTION. 3. A landowner that incurred damage under
17 this section is eligible for compensation for damages. A
18 landowner may file a claim for damages against a pipeline
19 company in small claims or district court for a violation of
20 this section or pursue remedies under section 479.46.

21 Sec. 30. Section 479.46, subsection 7, Code 2025, is amended
22 to read as follows:

23 7. As used in this section, "*damages*" means compensation for
24 damages to the land, crops, and other personal property caused
25 by the construction activity of installing a pipeline and its
26 attendant structures or underground storage facility, or a
27 compensable loss as described in section 479.45, subsection 1,
28 but does not include compensation for a property interest, and
29 "*landowner*" includes a farm tenant.

30 Sec. 31. NEW SECTION. **479.50 Hearing — commission member**
31 **attendance.**

32 All hearings initiated under this chapter shall follow the
33 attendance rules governing commission members as provided in
34 section 476.33, subsection 5.

35 Sec. 32. Section 479A.11, Code 2025, is amended to read as

1 follows:

2 **479A.11 Damages.**

3 1. A pipeline company operating pipelines or underground
4 storage shall be given reasonable access to the pipelines and
5 storage areas for the purpose of constructing, operating,
6 maintaining, or locating their pipes, pumps, pressure
7 apparatus, or other stations, wells, devices, or equipment used
8 in or upon a pipeline or storage area, but shall pay the owner
9 of the lands for the right of entry and the owner of crops on
10 the land all damages caused by entering, using, or occupying
11 the lands for these purposes; and shall pay to the owner of the
12 lands, after the completion of construction of the pipeline or
13 storage, all damages caused by settling of the soil along and
14 above the pipeline, and wash or erosion of the soil along the
15 pipeline due to the construction of the pipeline. However,
16 this section does not prevent the execution of an agreement
17 with other terms between the pipeline company and the owner of
18 the land or crops with reference to their use.

19 2. A claim for crop yield loss damages pursuant to this
20 section shall not be precluded from renegotiation under section
21 6B.52 on the grounds that the damages were apparent at the time
22 of settlement unless the settlement expressly releases the
23 pipeline company from claims for damages to the productivity of
24 the soil. A landowner that seeks damages under this section
25 not subject to a release shall notify the pipeline company in
26 writing fourteen days prior to harvest in each year to assess
27 crop deficiency.

28 Sec. 33. Section 479B.4, subsection 3, Code 2025, is amended
29 to read as follows:

30 3. The pipeline company shall hold informational meetings
31 in each county in which real property or property rights will
32 be affected at least thirty days prior to filing the petition
33 for a new pipeline. A member of the commission, or a person
34 designated by the commission, shall serve as the presiding
35 officer at each meeting and present an agenda for the meeting,

1 which shall include a summary of the legal rights of the
2 affected landowners. At least one member of the commission
3 shall attend each informational meeting. If at any point
4 during the meeting no member of the commission is available for
5 any reason, the meeting shall pause until at least one member
6 of the commission returns. No formal record of the meeting
7 shall be required. The meeting shall be held at a location
8 reasonably accessible to all persons who may be affected by
9 granting the permit.

10 Sec. 34. Section 479B.4, subsection 6, Code 2025, is amended
11 to read as follows:

12 6. a. A ~~pipeline company~~ person seeking rights under
13 this chapter shall not negotiate or purchase an easement or
14 other interest in land in a county known to be affected by the
15 proposed project prior to the informational meeting. After
16 such meeting, if notice by publication was properly made, a
17 person seeking rights under this chapter and a landowner may
18 enter a voluntary agreement for an interest in land without
19 regard to whether the landowner received notice by mail. Prior
20 to entering a voluntary agreement with a landowner who did not
21 receive notice of the informational meeting by mail, the person
22 seeking rights under this chapter shall provide such landowner
23 copies of the informational meeting materials presented by
24 the commission, the consumer advocate, and the person seeking
25 rights under this chapter. Nothing in this paragraph shall
26 prohibit a person seeking rights under this chapter from
27 holding a meeting prior to the informational meeting required
28 by this section to provide general information regarding a
29 project to a community that does not include negotiating
30 specific terms with specific landowners.

31 b. A person seeking rights under this chapter may contact
32 landowners within five miles of the project's proposed route
33 for the purpose of seeking voluntary easements under the same
34 conditions as provided in paragraph "a".

35 Sec. 35. Section 479B.7, Code 2025, is amended by adding the

1 following new subsection:

2 NEW SUBSECTION. 3. If a pipeline route is readjusted due
3 to an objection filed pursuant to this section, the utilities
4 commission shall not require a pipeline company to resubmit an
5 application for a permit pursuant to section 479B.4.

6 Sec. 36. Section 479B.9, Code 2025, is amended to read as
7 follows:

8 **479B.9 Final order — condition.**

9 The commission may grant a permit in whole or in part upon
10 terms, conditions, and restrictions as to location and route
11 as it determines to be just and proper. A permit shall not be
12 granted to a pipeline company unless the commission determines
13 that the proposed services will promote the public convenience
14 and necessity. The commission shall render a decision on a
15 petition requesting the power of eminent domain no later than
16 one year after the request for eminent domain is received by
17 the commission.

18 Sec. 37. Section 479B.16, Code 2025, is amended by adding
19 the following new subsection:

20 NEW SUBSECTION. 4. a. Notwithstanding subsection 1, a
21 pipeline company granted a permit for a pipeline to carry
22 liquefied carbon dioxide shall not be authorized to use eminent
23 domain except under all of the following circumstances:

24 (1) The pipeline was permitted by the commission prior to
25 the effective date of this Act.

26 (2) The pipeline company's petition process for a permit was
27 initiated by the filing of a request with the commission for
28 a date for an informational meeting as required under section
29 479B.4, or the petition for amendment was on file with the
30 commission prior to the effective date of this Act, including
31 if the petition was subject to review and amendment.

32 b. A pipeline for which the sole purpose is to attach a new
33 shipper, customer, or off-taker to a pipeline for which eminent
34 domain is authorized under paragraph "a" is authorized to use
35 eminent domain provided at least sixty-seven hundredths of the

1 affected parcels and of the total distance of the facility have
2 been acquired through voluntary easements. The commission
3 shall not require more than sixty-seven hundredths of easements
4 to be voluntary for purposes of this paragraph.

5 Sec. 38. Section 479B.17, Code 2025, is amended to read as
6 follows:

7 **479B.17 Damages.**

8 1. A pipeline company operating a pipeline or an
9 underground storage facility shall have reasonable access to
10 the pipeline or underground storage facility for the purpose
11 of constructing, operating, maintaining, or locating pipes,
12 pumps, pressure apparatus, or other stations, wells, devices,
13 or equipment used in or upon the pipeline or underground
14 storage facility. A pipeline company shall pay the owner of
15 the land for the right of entry and the owner of crops for all
16 damages caused by entering, using, or occupying the lands and
17 shall pay to the owner all damages caused by the completion
18 of construction of the pipeline due to wash or erosion of the
19 soil at or along the location of the pipeline and due to the
20 settling of the soil along and above the pipeline. However,
21 this section does not prevent the execution of an agreement
22 between the pipeline company and the owner of the land or crops
23 with reference to the use of the land.

24 2. A claim for crop yield loss damages pursuant to this
25 section shall not be precluded from renegotiation under section
26 6B.52 on the grounds that the damages were apparent at the time
27 of settlement unless the settlement expressly releases the
28 pipeline company from claims for damages to the productivity of
29 the soil. A landowner that seeks damages under this section
30 not subject to a release shall notify the pipeline company in
31 writing fourteen days prior to harvest in each year to assess
32 crop deficiency.

33 Sec. 39. Section 479B.20, Code 2025, is amended by adding
34 the following new subsection:

35 NEW SUBSECTION. 1A. For a pipeline company exercising

1 the power of eminent domain pursuant to this chapter, the
2 pipeline company shall be liable for repairs of drainage tile
3 installed prior to the installation of the pipeline, when the
4 installation, construction, operation, maintenance, or repair
5 of the pipeline is the proximate cause of the damage to the
6 drainage tile. The pipeline company's liability pursuant to
7 this section shall continue for the life of the pipeline and
8 shall include all of the following:

- 9 a. The full replacement costs of the drainage tile,
10 including, without limitation, material, labor, and equipment.
11 b. The reclamation and restoration of topsoil as part of any
12 drainage tile repair.

13 Sec. 40. Section 479B.20, subsection 5, Code 2025, is
14 amended to read as follows:

15 5. If the pipeline company or its contractor does not
16 comply with the requirements of [this section](#), with the land
17 restoration plan or line location, or with an independent
18 agreement on land restoration executed in accordance with
19 subsection 10, the county board of supervisors or a landowner
20 may petition the commission for an order requiring corrective
21 action to be taken. In addition, the county board of
22 supervisors or a landowner may file a complaint with the
23 commission seeking imposition of civil penalties under section
24 479B.21. A landowner may supply a copy of the complaint to the
25 county board of supervisors where the complaint originated.

26 Sec. 41. Section 479B.29, subsection 1, paragraphs b and f,
27 Code 2025, are amended to read as follows:

28 b. Loss or reduced yield of crops or yield from land near
29 the pipeline right-of-way resulting from lack of timely access
30 to the land or other disturbance of usual farm operations,
31 including interference with irrigation or drainage.

32 f. Erosion and soil compaction on lands attributable to
33 pipeline construction.

34 Sec. 42. Section 479B.29, subsection 1, Code 2025, is
35 amended by adding the following new paragraphs:

1 NEW PARAGRAPH. *h.* Damage to soil or water conservation
2 structures caused by construction, restoration, or subsequent
3 work by the pipeline company including but not limited to
4 terraces, grassed waterways, water and sediment control basins,
5 ponds, saturated buffers, and biofilters.

6 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems
7 caused by construction, restoration, or subsequent work by the
8 pipeline company.

9 Sec. 43. Section 479B.29, subsection 2, Code 2025, is
10 amended to read as follows:

11 2. A claim for ~~damage for future crop deficiency within~~
12 ~~the easement strip~~ damages incurred under this section shall
13 not be precluded from renegotiation under [section 6B.52](#) on
14 the grounds that it was apparent at the time of settlement
15 unless the settlement expressly releases the pipeline company
16 from claims for damage to the productivity of the soil. ~~The A~~
17 landowner that seeks damages under this section not subject to
18 a release shall notify the pipeline company in writing fourteen
19 days prior to harvest in each year to assess crop deficiency.
20 The landowner may submit a global positioning yield map to
21 demonstrate such crop loss, but the information contained in
22 such map shall not be dispositive as to the extent or causation
23 of the damages, which may be contested by the pipeline company.

24 Sec. 44. Section 479B.29, Code 2025, is amended by adding
25 the following new subsection:

26 NEW SUBSECTION. 3. A landowner that incurred damage under
27 this section is eligible for compensation for damages. A
28 landowner may file a claim for damages against a pipeline
29 company in small claims or district court for a violation of
30 this section or pursue remedies under section 479B.30.

31 Sec. 45. Section 479B.30, subsection 7, Code 2025, is
32 amended to read as follows:

33 7. As used in [this section](#), “*damages*” means compensation for
34 damages to the land, crops, and other personal property caused
35 by the construction of a pipeline and its attendant structures

1 or underground storage facility, or a compensable loss as
2 described in section 479B.29, subsection 1, but does not
3 include compensation for a property interest, and "*landowner*"
4 includes a farm tenant.

5 Sec. 46. NEW SECTION. **479B.34 Hearing — commission member**
6 **attendance.**

7 All hearings initiated under this chapter shall follow the
8 attendance rules governing commission members as provided in
9 section 476.33, subsection 5.

10 Sec. 47. RETROACTIVE APPLICABILITY. The section of this Act
11 amending section 479B.4, subsection 6, applies retroactively to
12 voluntary agreements between a pipeline company and a landowner
13 entered into on or after January 1, 2024.>

14 2. Title page, by striking lines 1 through 8 and
15 inserting <An Act relating to public utilities, including
16 utility commission member attendance at hearings and
17 informational meetings, utility commission decision timelines,
18 land restoration standards, claims for damages, easement
19 negotiations, and the exercise of eminent domain for the
20 construction of hazardous liquid pipelines, making civil
21 penalties applicable, and including retroactive applicability
22 provisions.>

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